

The Tolls on Roads and Bridges Act, 1875

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State of Maharashtra - Act

The Tolls on Roads and Bridges Act, 1875

MAHARASHTRA

India

The Tolls on Roads and Bridges Act, 1875

Act 3 of 1875

Published on 28 December 1875

Commenced on 28 December 1875

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The Tolls on Roads and Bridges Act, 1875

Bombay Act

No. 3 of 1875

[28th December, 1875]

For Statement of objects and Reasons, see Bombay Government Gazette, 1875, Part V. page 92, and for Proceedings in Council, see Bombay Government Gazette, pp. 104 and 108.

The short title was given by the Bombay Short Titles Act, 1921 (Bombay 2 of 1921.)

No tolls leviable under this Act are to be levied within any local area notified under the Bombay Highway Act, 1883 (Bombay 1 of 1883, Section 7.

The net Proceeds of certain tolls levied under this Act are to be credited to the Local Fund constituted by the Bombay Local Boards Act, 1923 (Bombay 6 of 1923), Section 74.

An Act for enabling Government to levy tolls on public roads and bridges in the Presidency of Bombay.

Preamble

Whereas tolls have been levied in the Presidency of Bombay in accordance with [Act XV of 1864]

[The Indian Tolls Act, 1864, Central Acts.]

since the thirtieth day of July, 1864, but doubts have arisen whether the said Act has been formally extended to the said Presidency; and whereas it is expedient to remove the said doubts and to consolidate in one Act the provisions for the levy of tolls upon public roads and bridges in the said Presidency; It is enacted as follows:-

1.

Repeal of Act VIII of 1851.

- [Act VIII of 1851]

[The Indian Tolls Act, 1851, Central Acts.]

is hereby repealed in so far as it affects the Presidency of Bombay.

2.

[Act XV of 1864 deemed to have been extended to Bombay Presidency from 30th July, 1864.]

- Repealed Act XVI of 1895.

3.

Rates of tolls to be levied.

- The [Provincial Government]

[The words 'Provincial Government' were substituted for the words 'Governor in Council' by the Adaptation of Indian Laws Order in Council.]

may cause such rates of tolls, not exceeding the rates mentioned in the Schedule annexed to this Act, to be levied upon any road or bridge which has been or shall hereafter be made or repaired at the expense of [the Crown]

[The words 'the Crown' were substituted for the words 'the Government' by the Adaptation of Indian Laws Order in Council.]

or from funds collected under the provisions of [Bombay Act III of 1869]

[See now Bombay 6 of 1923.]

or other funds levied under the authority and subject to the general control [of the Provincial Government]

[The words 'of the Provincial Government' were substituted for the words 'of Government' by the Adaptation of Indian Laws Order in Council.]

, and may place the collection of such tolls under the management of such persons as may appear to [it]

[The word 'it' was substituted for the word 'him' by the Adaptation of Indian Laws Order in Council.]

proper; and all persons employed in the management and collection of such tolls shall be liable to the same responsibilities as would belong to them if employed in the collection of the land revenue [*****]

[The words 'until such rates of tolls shall be fixed by the Governor in Council, the tolls now levied shall continue to be levied by persons under whose management the same are now collected, who shall be held to have been appointed under the provisions of this Act,' were repealed by the Amending Act, 1895 (16 of 1895).]

.

"Persons" defined.

[Clause 2. - The word "persons" in this section shall be deemed to include local boards established under the Bombay

[Clause 2 was substituted by Section 77 of the Bombay Local Boards Act, 1884 (Bombay 1 of 1884), which is repealed by Bombay 6 of 1923.]

Local Boards Act, 1884.]

4.

Procedure in case of non-payment of tolls.

- In case of non-payment of any such toll on demand, the officers appointed to collect the same may in the first place seize any part of burden or load of the carriage or animal on which the toll is chargeable, of sufficient value to defray the toll, or, in the event of the burden or load being insufficient, such carriage or animal;

and, if any toll remains undischarged for twenty-four hours, with the cost arising from such seizure, the case shall be brought before the officer appointed to superintend the collection of the said toll, who may sell the property seized for discharge of the toll and all expenses occasioned by such non-payment, seizure and sale, and cause any balance that may remain to be returned on demand to the owner of the property; and the said officer on receipt of the property shall

forthwith issue a notice, that at noon of the next day, exclusive of Sunday or any close holiday, he will sell the property by auction:

Provided that if, at any time before the sale has actually begun, the person whose property has been seized shall tender the amount of all the expenses incurred, and of double the toll payable by him, the said officer shall forth with release the property seized.

5.

Exemptions from toll. Provincial Government may grant other exemptions.

- No tolls shall be paid for the passage [* * *]

[The words 'of troops and military stores and equipages on their, march or' were repealed by Section 3 of the Indian Tolls (Army) Act, 1901 (2 of 1901).]

of Police-Officers on duty, or of any person or property in their custody. And it shall further be lawful for [the Provincial Government]

[The words 'the Provincial Government' were substituted for the words 'His Excellency the Governor in Council' by the Adaptation of Indian Laws Order in Council.]

, by notification in the [Official Gazette]

[The words 'Official Gazette' were substituted for the words 'Government Gazette' by the Adaptation of Indian Laws Order in Council.]

, to grant and define other exemptions from payment of the tolls levied under this Act.

6.

Police-officer bound to assist toll-collectors.

- All Police officers shall be bound to assist the toll-collectors, when required, in the execution of this Act, and for that purpose shall have the same power which they have in the exercise of their ordinary police duties.

7.

Penalty on unauthorized person demanding tolls, and for illegal demand.

- Every person, other than the persons appointed to collect the tolls under this Act, who shall levy or demand any toll on any public road or bridge, or for passing through any bazar situated thereon, and also every person who shall unlawfully and extortionately demand or take any other or higher toll than the lawful toll, or under colour of this Act seize or sell any property, knowing such seizure or sale to be unlawful or in any manner unlawfully extort money or any valuable thing from any person, under colour of this Act, shall be liable, on conviction before a Magistrate, to imprisonment [* * *]

[The words 'of either description' and word 'calendar' were repealed by the Bombay General Clauses Act, 1886 (Bombay 3 of 1886), Schedule B. This Schedule has been printed as an Appendix to the Bombay General Clauses Act, 1904 (Bombay 1 of 1904).]

for any term not exceeding six [* * *]

[The words 'of either description' and word 'calendar' were repealed by the Bombay General Clauses Act, 1886 (Bombay 3 of 1886), Schedule B. This Schedule has been printed as an Appendix to the Bombay General Clauses Act, 1904 (Bombay 1 of 1904).]

months, or to fine not exceeding rupees two hundred, any part of which fine may be awarded by the Magistrate to the person aggrieved, but this remedy shall not be deemed to bar or affect his right to have redress by suit in the Civil Court of the district.

8.

Table of tolls to be put up at gate or station.

- A table of the tolls authorised to be taken at any toll-gate or station, legibly written or printed in English words and figures, and also in those of the vernacular language of the district, to which shall be annexed, written or printed in like manner, a statement of the penalties for refusing to pay the tolls and for taking any unlawful toll, shall be furnished by Government to the collector of tolls, and the same shall by him be kept in a conspicuous place near such gate or station.

9.

Collectors of tolls may compound for tolls.

- Any person entrusted with the management of the collection of tolls under this Act may in his discretion compound for any period, not exceeding one year with any person for a certain sum to be paid by such person for himself or for any vehicle or animal kept by him, in lieu of the rates of tolls specified in the Schedule to this Act.

[10 . Power of Provincial Government to lease the levy of tolls. - It shall be lawful for the [Provincial Government]

[Section 10 and 11 were inserted by Section 2 of the Tolls on Roads and Bridges Act (Amendment) Act, 1881 (Bombay 5 of 1881).]

to lease the levy of tolls at such rates not exceeding the rates mentioned in the Schedule annexed to this Act upon any public road or bridge by public auction or private contract from year to year or for a longer period not exceeding seven years on such terms and conditions as the [Provincial Government]

[The words 'Provincial Government' were substituted for the word 'Government' by the Adaptation of Indian Laws Order in Council.]

may deem desirable;

Provided that the lessee shall give security for the due fulfillment of such conditions, and that all sums payable under the terms and conditions of the lease shall be recoverable as a demand for the land revenue under the law for the time being in force so far as applicable .]

11.

[Acts of lessee of his agent. - When the tolls on any public road have been duly leased, the lessee, and every person employed by the lessee as his agent for collecting the tolls, shall be deemed to be persons appointed to collect tolls under this Act, and shall exercise all the powers and be subject to all the responsibilities attaching to persons appointed to collect tolls under this Act.]

[Section 10 and 11 were inserted by Section 2 of the Tolls on Roads and Bridges Act (Amendment) Act, 1881 (Bombay 5 of 1881).]

12.

[Application of tolls. - Repealed Bombay 1 to 1884.] [[Section 12 which is repealed by Section 2 and schedule to the Bombay Local Boards Act, 1884 (Bombay 1 of 1884), except in the City of Bombay, is as follows:-

'The nett proceeds of the tolls and leases of tolls under this Act shall be applied wholly to the construction, repair and maintenance of roads and bridges within the Presidency of Bombay:

Provided that the nett proceeds of tolls and leases of tolls on roads or bridges constructed by or belonging to any local fund committee shall be applied to the construction and maintenance of roads or bridges in the district under the superintendence of such local fund committee.']]

Schedule

Rs.

a.

p.

On every four-wheeled carriage on springs

1

0

0

On every two-wheeled carriage on springs

0

8

0

On every ekka or hackery on springs

0

2

0

On every cart and hackery not on springs drawn by 8 bullocks, buffaloes, horses ponies, asses or mules, if laden

1

0

0

Ditto,

if not laden

0

8

0

On every cart and hackery not on springs drawn by 6 bullocks,
buffaloes;horses, ponies, asses or mules, if laden

0

12

0

Ditto,

if not laden

0

6

0

On every cart and hackery not on springs drawn by 4 bullocks,
buffaloes,horses, ponies, asses or mules, if leaden

0

8

0

Ditto,

if not laden

0

4

0

On every cart and hackery not on springs drawn by 2 bullocks,
buffaloes,horses, ponies, asses or mules, if laden

0

4

0

Ditto,

if not laden

0

2

0

Buffaloes, or bullocks, per head, if laden

0

1

0

Ditto,

if not laden

0

0

6

On every elephant

1

8

0

On every camel, if laden

0

4

0

Ditto,

if not laden

0

2

0

On every horse, if laden or ridden

0

1

6

Ditto,

if not laden

0

0

9

On every pony or mule, if laden, if laden or ridden

0

0

9

On every pony or mule, unladen or led

0

0

6

On every ass, if laden or ridden

0

0

6

Ditto,

unladen or led

0

0

3

On every sheep or goat or pig

0

0

1

On every palankin dull, palna or tojon with 8 bearers

1

0

0

Ditto

ditto

ditto

with 6 bearers

0

12

0

Ditto

ditto

ditto

with 4 bearers

0

8

0

On every foot passenger with the special sanction of

Government on bridges or hill roads

0

0

3

Explanation I. - Animals drawing any, vehicle for which toll can be demanded are not to be also charged with toll.

Explanation II. - No second toll shall be levied on the same carriage or animal returning on the same day.

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